



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Copy of RELEASED TIME FOR RELIGIOUS INSTRUCTION
Code	po5223
Status	First Reading
Adopted	November 17, 2014
Last Revised	June 27, 2016

5223 - **RELEASED TIME FOR RELIGIOUS INSTRUCTION DURING THE SCHOOL DAY**

The Board of Education desires to cooperate with those parents who wish to provide for religious instruction for their children but also recognizes its responsibility to enforce the attendance requirements of the State.

Students ~~shall~~ **may** be provided "released time" **during the school day** ~~from school~~ to attend a course in religious instruction conducted by a private entity off District property, provided that the following requirements are met, such students will not be considered absent when the:

- A. student's parent or guardian gives consent in writing;
- B. sponsoring entity maintains attendance records and makes them available to the District;
- C. sponsoring entity provides and assumes liability for the student; and
- D. student assumes responsibility for any missed school work.

Transportation of students to and from **released time** ~~Released Time~~ instruction is the complete responsibility of the sponsoring entity, the parent, guardian, and/or student. The Board ~~of Education~~, its members, and employees are immune from liability for any injuries arising from transportation to and from **released time** ~~Released Time~~ instruction. Further, no Board funds will be expended for, and no District personnel shall be involved in the provision of religious instruction.

The District shall collaborate with a sponsoring entity to identify a time for religious instruction to be offered during the school day.

Students shall not be excused from a core curriculum subject course to attend **released time** ~~Released Time~~ instruction. **[]** The Board deems all graded courses to be core curriculum including, but not limited to, courses that have State-approved learning standards. **[END OF OPTION]**

Released time instruction will be limited to 9 day(s) per school year , as established by the Superintendent, and shall not exceed 50 minutes, inclusive of travel.

It is the responsibility of any private entity providing religious instruction during release time from the school day to annually submit to the Board an acknowledgment that it has completed criminal background checks on all instructors and volunteers engaged in a course in religious instruction and certifying that no such individual has a criminal conviction which would otherwise prevent them from being employed with an Ohio public school district. In addition, the acknowledgment will include an affirmation by the private entity of its ongoing obligation to complete and maintain such checks on all such instructors and volunteers if/when staffing changes. The District

will not release students to a private entity for religious instruction release time if the entity fails to provide the acknowledgment and/or to satisfactorily complete follow up criminal background checks as needed. Criminal background check documentation must be provided to the Board upon request.

Staff members shall not promote or discourage participation in release time programs for any religious instructional program.

Nothing herein shall constitute an endorsement of religion or infringe upon an individual's First Amendment rights.

© Neola 2025~~16~~

Legal

Attorney General's Opinion 88-001